INNOCENT BATSANI NCUBE

And

ZANELE NCUBE

versus

MTHOKOZISI ROBERT MHLANGA

And

BULAWAYO GLASS AND ALLIED PRODUCTS PVT LTD

And

BOTHWELL NHIRE

And

BARD REAL ESTATE

And

BULAWAYO CITY COUNCIL

IN THE HIGH COURT OF ZIMBABWE
NDUNA J
BULAWAYO 19 AND 23 SEPTEMBER 2025

Urgent Chamber Application

V Chikomo, for the applicants
M Ndlovu with B Dube, for the first and second respondents
N. V. Moyo, for the third respondent

NDUNA J: This matter arises from an urgent chamber application instituted by Innocent Batsani Ncube and Zanele Ncube the applicants against several respondents, including Bulawayo Glass and Allied Products (Pvt) Ltd, Bothwell Nhire, Bard Real Estate, and the Bulawayo City Council. The dispute centres on rights over Stand 14328 Selbourne Brook, Bulawayo Township, a property which the applicants initially acquired through an agreement with the third respondent.

FACTUAL BACKGROUND

The factual background is that on 29 May 2012, the applicants entered into a memorandum of agreement with the second respondent in respect of the Selbourne Brook property. That cession was duly registered with the fifth respondent, Bulawayo City Council. In 2019, however, the applicants concluded a sale agreement with one Lloyd Chitiyo for the sum of USD 30,000, purporting to dispose of their cession rights to him. Although that agreement was signed on 25 September 2019, no transfer of cession was effected in the City Council's records. Thus, as matters stand, the applicants remain the recorded cession holders in the council registers.

The applicants approached this Court on an urgent basis seeking an interim interdict to restrain the third respondent from continuing with construction works on the property pending the determination of case number HCBC 1032/25, in which they seek declaratory relief concerning their entitlement to the cession. The respondents opposed the application and raised several points *in limine*.

The preliminary issues raised for determination can be summarised as follows:

1. Whether the applicants possess locus standi to bring the present proceedings given that they sold their rights to Lloyd Chitiyo.
2. Whether the application is fatally defective for want of compliance with the rules, in particular the use of Form 25 instead of Form 23 as required under Rule 60 of the High Court Rules.
3. Whether the relief sought is fatally incompetent in that the interim relief mirrors the final relief
4. Whether the matter is urgent, or whether urgency was contrived.
5. Whether the application was brought in bad faith, containing material falsehoods and concealing the true facts.

Of these, the most substantive for present purposes is the issue of *locus standi*, which goes to the competence of the proceedings.

The respondents contend that the applicants lack standing because they voluntarily disposed of their rights by selling the property to Chitiyo. In their submission, once rights are alienated, the cedent retains nothing further to enforce. Reliance was placed on *ZIMTA & Ors v Minister of Education 1990 (2) ZLR 48 (HC)*, which established the principle that a party must show a direct and substantial interest in order to justify its participation in litigation. Counsel also invoked *Dairibord Malawi (Pvt) Ltd v Mudazano* ZWHH 55-07, where the court held that once rights have been transferred, the transferor has no residual claim. According to respondents, the true party with an enforceable interest is Chitiyo, who is not before the court, and the applicants are "crying more than the bereaved."

The applicants, however, assert that they remain the registered cession holders with the fifth respondent. While they acknowledge the sale agreement with Chitiyo, they argue that until formal transfer of the cession is completed through the City Council, the Zimbabwe Revenue Authority, and the issuance of a new deed of cession, they remain the only parties recognised in law. They cite *Gomba v Makwarimba 1992 (2) ZLR 27 (SC)*, which clarified that ownership in immovable property does not pass merely through agreement but only through registration. They further rely on *CBZ Bank Ltd v Moyo & Sheriff* SC 17/2018, where the Supreme Court explained that proof of cession rights lies in the registered deed, not merely contractual undertakings. In their submission, Chitiyo presently holds only personal rights against them, whereas they hold the enforceable rights against the council and third parties.

APPLICATION OF THE LAW

Whether the applicants possess locus standi to bring the present proceedings given that they sold their rights to Lloyd Chitiyo.

The threshold question in this urgent chamber application is whether the applicants possess locus standi to seek an interdict restraining the third respondent from continuing construction on Stand 14328 Selbourne Brook. The parties' dispute turns on two concurrent factual realities

(a) the applicants are recorded as cession-holders in the registers of the Bulawayo City Council (the fifth respondent) as shown by annexure B and D pursuant to a

cession/cessionary arrangement arising from a 2012 memorandum of agreement marked as annexure A.

(b) the applicants executed a sale agreement in favour of a third party, Lloyd Chitiyo, dated 25 September 2019 for USD30,000, but no Memorandum was entered into with the City Council.

The respondents submit that, because the applicants have sold their rights, they no longer have a direct and substantial interest and are therefore mere "busy bodies"; the applicants reply that until the formal transfer is perfected they remain the registered cession-holders and thus possess a real, enforceable interest that may be prejudicially affected by the respondent's conduct.

In *Allied Bank Ltd v Dengu & Anor* 16-SC-052 2016 (2) ZLR 373(S) at 376G-H MALABA DCJ *(as he then was)* aptly stated that at para 31:—

> "The principle of locus standi is concerned with the relationship between the cause of action and the relief sought. Once a party establishes that there is a cause of action and that he is entitled to the relief sought, he or she has locus standi. The plaintiff or applicant only has to show that he or she has a direct and substantial interest in the right which is the subject matter of the cause of action."

In Makarudze & Anor v Bungu & Ors 2015 (1) ZLR 15 (H) the Court held

> that *locus standi* in judicio refers to one's right, ability or capacity to bring legal proceedings in a court of law. Locus standi may also refer to a legal interest in the subject matter of the action which could be prejudicially affected by the judgment of the court

Applying those principles to the present facts, the applicants' cause of action and the relief sought are clear and closely connected. The cause of action is the interference by way of construction works with rights over Stand 14328 which the applicants assert as registered cession-holders. The relief sought in the urgent chamber application is an interim interdict restraining construction pending the final determination of HCBC 1032/25, a claim in which the applicants seek declaratory relief regarding their entitlement to the cession. Under *Allied Bank*, the question is whether the applicants have established a cause of action and entitlement to the interim relief; if so, locus standi follows.

On the facts, two elements establish a sufficient legal interest. First, the applicant's names remained the ones recorded by city council. This is shown by the utility bill on the record as annexure D specifically D11 which shows their names as recent as June 2025 as the stand owners. Zimbabwean jurisprudence recognises that legal title and enforceable rights in immovable property are not consummated solely by agreement but by the formalities of registration; until registration in favour of a purchaser is perfected those recorded as cession-holders retain enforceable rights vis-à-vis third parties and the relevant local authority. That principle articulated in authorities such as *Gomba v Makwarimba 1992 (2) ZLR 27 (SC)* and *CBZ Bank Ltd v Moyo & Sheriff* SC 17-2018 which the parties placed before the Court demonstrates that a contractual sale to a purchaser does not automatically extinguish the cedent's legal locus if transfer has not been effected. Second, the applicants have pleaded and the record shows a continuing contractual relationship and obligation they must deliver a valid cession to Chitiyo. This dual position recorded cessionary status plus contractual duty to transfer gives rise to a concrete legal interest that is susceptible to prejudice.

The prejudice is real and immediate. Construction on the property, if allowed to proceed , may fundamentally alter the subject matter of the cession, render transfer practically impossible or materially devalue the right which the applicants must deliver to Chitiyo, and thereby expose the applicants to contractual liability to their purchaser. Under *Makarudze, locus standi* may be established when the applicant has a legal interest that could be prejudicially affected by the judgment or conduct of the other party; here the construction activity directly threatens the applicants' ability to perform and to preserve the property in the state required for lawful transfer. That risk of prejudice is precisely the type of threatened injury that the interim interdict is designed to prevent.

The respondents' contrary contention that the applicants have divested themselves of all enforceable interest by selling to Chitiyo and therefore lack standing must be tested against *Allied Bank'*s formulation. The mere fact of a prior contractual sale does not automatically defeat locus standi if the applicant can show a cause of action and entitlement to the relief sought. The applicants have identified a legally cognisable cause of action which is interference with cession rights recorded in their name and have adduced facts demonstrating a real risk of prejudice ongoing construction that may defeat transfer and contractual performance. In terms of the case of *Allied*

Bank,supra, that is sufficient to found locus standi. The respondents' contention more properly addresses whether the purchaser, Chitiyo, ought to have been joined as a party a point of non-joinder and procedural completeness rather than whether the applicants have no locus at all.

Two corollaries follow from this analysis. First, the applicants' *locus standi* is real but qualified: it is rooted in their current legal status as registered cessionaries and in their contractual obligations. It is not based on an abstract or mere moral claim. Second, because Chitiyo has a direct beneficial interest and may be affected by the court's orders, his absence exposes the applicants' case to a possible challenge on grounds of non-joinder or potential prejudice to an absent but interested party.

Although the applicants retain locus standi as registered cessionaries, their standing is qualified. The sale to Lloyd Chitiyo created a direct beneficial interest in him, and any order granted would affect his rights. On joinder of necessity the authors Herbstein and Van Winsen: The *Civil Practice of the High Courts and the Supreme Court of Appeal of South Africa* 5th ed p 215 had this to say:

> "A third party who has, or may have, a direct and substantial interest in any order the court might make in proceedings or is such an order cannot be sustained or carried into effect without prejudicing that party, is a necessary party and should be joined in the proceedings, unless the court is satisfied that such person has waived the right to be joined. Such a person is entitled to demand joinder as a party as of right and cannot be required to establish in addition that joinder is equitable for convenience. In fact, when such person is a necessary party in this sense the court will not deal with the issues without a joinder being effected, and no question of discretion or convenience arises."

It was further articulated in *John Simon Rodger & Ors* v *Frik Muller & Ors* HH 2/10 on p 4 by PATEL J as he was then in the cyclostyled judgment that:-

> "While I accept that non-joinder of a party is not necessarily and invariably fatal to the continuance or determination of any matter, it is trite that r 87 (1) do not absolve a litigant of the obligation to cite all relevant parties. The discretion of this court in this regard must be exercised so as to ensure that all persons who might be affected by the determination of the issues in dispute be afforded the opportunity to be heard before that determination is actually made."

Chitiyo is plainly a necessary party. By virtue of the 2019 sale agreement, he has a direct and substantial interest in the property which is the subject of this litigation. The applicants were therefore obliged to cite him. Their failure to do so is not a minor procedural misstep but goes to the fairness and completeness of the proceedings. To proceed in his absence would violate the principle that all persons affected by an order must have an opportunity to be heard. His absence means the Court cannot fairly or effectively determine the dispute. While non-joinder does not extinguish *locus standi,* neither is it always fatal however in this case it renders the proceedings fatally incomplete.

I shall not proceed with the other preliminary points raised as the non-joinder of Lloyd Chitiyo renders the matter fatally incomplete

DISPOSITION

Accordingly, although the applicants have *locus standi*, the matter cannot be entertained without the necessary joinder. The urgent application must be struck off the roll for non-joinder of an indispensable party

V. Chikomo Law Chambers, applicant's legal practitioners
Ndlovu & Dube Legal Practice, 1st and 2nd respondents' legal practitioners
Tanaka Law Chambers, 3rd respondent's legal practitioners